



BKM INDUSTRIES LIMITED

Vigil Mechanism and Whistleblower Policy

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Applicable legal and regulatory framework

This Policy shall be read with the following principal requirements, each as amended, replaced, saved or brought into force from time to time:

- Companies Act, 2013, sections 177(9) and 177(10), and rule 7 of the Companies (Meetings of Board and its Powers) Rules, 2014
- SEBI Listing Regulations, regulation 22
- SEBI PIT Regulations, including regulation 9A and reporting of actual or suspected leakage of UPSI
- Applicable anti-retaliation, POSH, fraud, anti-bribery and employment requirements

STATUTORY OVERRIDE

If this Policy is inconsistent with a mandatory law, regulation, rule, circular, stock-exchange direction or judicial order, the mandatory requirement prevails. A more beneficial statutory employment benefit also prevails.

Direct access and statutory reporting

- Employees and directors have access to the vigil mechanism and may communicate directly with the Chairperson of the Audit Committee in appropriate or exceptional cases.
- Adequate safeguards against victimisation must be maintained; access to the Chairperson may not be denied.
- Complaints of sexual harassment follow the POSH route where statutory jurisdiction exists; actual or suspected leakage of UPSI is escalated under the PIT institutional mechanism; neither route removes whistleblower protection.

Policy provisions

Preamble

BKM Industries Limited ("BKM" or the "Company") is committed to conducting its business in a lawful, ethical, transparent and accountable manner. The Company believes that strong corporate governance is founded on integrity, openness and a culture in which individuals are encouraged to speak up when they become aware of any actual or suspected wrongdoing.

The Company recognises that Directors, employees and other stakeholders may, in the course of their association with the Company, become aware of practices or actions that may be inconsistent with applicable laws, regulations, the Company's values, Code of Conduct or accepted standards of ethical business conduct. The Company encourages the reporting of such concerns in good faith and is committed to ensuring that persons raising concerns are treated fairly and protected from retaliation or victimisation.

This Vigil Mechanism and Whistleblower Policy ("Policy") establishes a framework for reporting genuine concerns relating to unethical conduct, actual or suspected fraud, violation of law, misuse of authority, leak or suspected leak of Unpublished Price Sensitive Information ("UPSI"), breach of the Company's policies or any other improper activity that may adversely affect the interests or reputation of the Company.

This Policy has been adopted in accordance with the provisions of Section 177 of the Companies Act, 2013 read with Rule 7 of the Companies (Meetings of Board and its Powers) Rules, 2014, Regulation 22 of the Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 ("SEBI LODR Regulations"), Schedule IV of the Companies Act, 2013 and Regulation 9A of the Securities and Exchange Board of India (Prohibition of Insider Trading) Regulations, 2015, as amended from time to time.

The Policy provides adequate safeguards against victimisation of whistleblowers and ensures direct access to the Chairperson of the Audit Committee in appropriate or exceptional cases.

Purpose And Objectives

The objectives of this Policy are to:

- Promote a culture of integrity, transparency and accountability;
- Encourage the reporting of genuine concerns regarding misconduct or irregularities;
- Provide a secure, confidential and accessible mechanism for reporting concerns;
- Protect whistleblowers against retaliation, discrimination or victimisation;
- Ensure fair, objective and timely review of concerns raised;
- Strengthen the Company's governance, compliance and risk management framework; and
- Comply with applicable legal and regulatory requirements.

Applicability And Scope

This Policy applies to:

- Directors;
- Independent Directors;
- Key Managerial Personnel;

- Permanent employees;
- Temporary employees;
- Contractual employees;
- Trainees and interns.

The Audit Committee may also consider concerns received from shareholders, vendors, consultants, customers or other stakeholders where the matter relates to the affairs of the Company and falls within the scope of this Policy.

This Policy covers concerns relating to actual, suspected or attempted misconduct occurring within the Company or arising from activities connected with the Company's business.

Definitions

Audit Committee

Means the Audit Committee constituted by the Board of Directors of the Company in accordance with the Companies Act, 2013 and the SEBI LODR Regulations.

- Board

Means the Board of Directors of the Company.

- Compliance Officer

Means the Company Secretary or such other person designated by the Board for administration of this Policy.

- Protected Disclosure

Means any communication made in good faith disclosing information relating to actual, suspected or attempted misconduct covered under this Policy.

- Subject

Means any person against or in relation to whom a Protected Disclosure is made or investigation is carried out.

- Whistleblower

Means any person covered under this Policy who makes a Protected Disclosure in good faith.

- Unpublished Price Sensitive Information (UPSI)

Shall have the meaning assigned to it under the SEBI (Prohibition of Insider Trading) Regulations, 2015.

Reportable Concerns

The following matters may be reported under this Policy:

- Fraud, attempted fraud or financial irregularities;
- Misappropriation or misuse of Company assets or funds;
- Bribery, corruption or unethical business conduct;
- Abuse of authority or breach of fiduciary responsibilities;
- Violation of applicable laws, regulations or statutory obligations;
- Breach of the Company's Code of Conduct or internal policies;
- Deliberate concealment of information relating to wrongdoing;
- Serious conflicts of interest not properly disclosed;
- Leak or suspected leak of UPSI;
- Manipulation of records, documents or financial statements;

- Serious health, safety or environmental violations; and
- Any conduct that may materially harm the Company, its stakeholders, reputation or operations.

Matters Outside The Scope Of This Policy

This Policy is not intended to address:

- Routine employment grievances;
- Performance appraisal matters;
- Compensation or promotion-related issues;
- Personal disputes not involving misconduct;
- Matters for which separate grievance redressal mechanisms are available.

Such matters shall ordinarily be addressed through appropriate management channels.

Guiding Principles

The Company shall ensure that:

- Genuine concerns are encouraged and treated seriously;
- Concerns are reviewed fairly, independently and objectively;
- Confidentiality is maintained to the extent reasonably practicable;
- No person is victimised for raising a concern in good faith;
- Investigations are conducted in accordance with principles of natural justice; and
- Appropriate action is taken wherever misconduct is established.

Reporting Mechanism And Protected Disclosures

Protected Disclosures should preferably be made in writing and should contain sufficient information to facilitate assessment and investigation.

Where possible, the disclosure should include:

- Nature of the concern;
- Relevant facts and circumstances;
- Names of persons involved;
- Supporting documents or evidence, if available.
- Protected Disclosures may be submitted to:
- The Compliance Officer / Company Secretary

BKM Industries Limited

Email: Secretrial@bkmindustries.in

or

- Chairperson of the Audit Committee

BKM Industries Limited

Email: hr@bkmindustries.in

A disclosure may also be sent in a sealed envelope superscribed:

"Protected Disclosure under Vigil Mechanism and Whistleblower Policy"

and addressed to the registered office of the Company.

Direct Access To The Chairperson Of The Audit Committee

A Whistleblower may directly approach the Chairperson of the Audit Committee where:

- The concern involves senior management;
- The concern involves the Compliance Officer;
- The Whistleblower reasonably believes that the matter may not receive independent consideration through normal reporting channels; or
- Exceptional circumstances otherwise exist.

Anonymous Disclosures

The Company encourages Whistleblowers to disclose their identity to facilitate effective review and investigation.

However, anonymous disclosures may be considered where:

- The information appears credible;
- Sufficient particulars are provided; and
- The matter is of a serious nature.

The decision to investigate an anonymous disclosure shall rest with the Audit Committee.

Protection Against Retaliation And Victimization

No Whistleblower who makes a Protected Disclosure in good faith shall be subjected to:

- Harassment;
- Intimidation;
- Victimization;
- Discrimination;
- Threats;
- Retaliatory action; or
- Any adverse employment consequence solely because a concern has been reported.

Any person found to have engaged in retaliation or victimisation may be subject to disciplinary action.

Protection under this Policy shall not extend to disclosures made knowingly false, maliciously or with mala fide intent.

Confidentiality

The Company shall make reasonable efforts to protect the identity of the Whistleblower and maintain confidentiality of:

- The Protected Disclosure;
- The identity of persons involved;
- Investigation records and findings.

Information may be disclosed only where necessary for investigation, implementation of corrective actions or compliance with legal or regulatory requirements.

Review And Investigation Process

Upon receipt of a Protected Disclosure, the Compliance Officer shall undertake a preliminary review to determine whether the matter falls within the scope of this Policy.

Where considered appropriate, the matter shall be placed before the Audit Committee.

The Audit Committee may:

- Conduct the review itself;
- Seek assistance from management;
- Constitute an internal review team;
- Engage internal auditors, legal advisors or other professionals.

Investigations shall be conducted fairly, objectively and in a timely manner.

The mere receipt of a complaint shall not be construed as proof of misconduct.

Rights And Responsibilities Of Parties Involved

- Whistleblower

The Whistleblower shall:

- Act in good faith;
- Provide accurate information to the best of his or her knowledge;
- Cooperate during the review process, where required.
- Subject

The Subject shall:

- Be treated fairly and respectfully;
- Be given an opportunity to provide relevant information where appropriate;
- Not be presumed guilty merely because a complaint has been made.

Outcome And Corrective Action

Where an investigation substantiates misconduct, the Audit Committee may recommend appropriate action, including:

- Corrective measures;
- Process improvements;
- Disciplinary action;
- Recovery of losses;
- Reporting to regulatory authorities;
- Civil or criminal proceedings, where warranted.

The Board or management shall take such action as may be considered appropriate.

Reporting Of Leak Or Suspected Leak Of Upsi

Any concern relating to leak or suspected leak of UPSI shall be dealt with in accordance with:

- The SEBI (Prohibition of Insider Trading) Regulations, 2015;
- The Company's Code of Conduct for Prevention of Insider Trading; and

- The Company's Code of Practices and Procedures for Fair Disclosure of UPSI.

The Audit Committee shall be informed of such matters and the Company shall make disclosures to stock exchanges or regulatory authorities wherever required by law.

Role Of The Audit Committee

The Audit Committee shall:

- Oversee the implementation of this Policy;
- Review significant complaints and investigation findings;
- Ensure that adequate safeguards exist against victimisation;
- Ensure direct access to the Chairperson of the Audit Committee;
- Monitor the effectiveness of the Vigil Mechanism; and
- Recommend corrective action wherever necessary.

False Or Malicious Complaints

A complaint shall not be considered false merely because it is not substantiated following investigation.

However, if a complaint is found to have been made knowingly false, frivolous, malicious or with mala fide intent, appropriate disciplinary or legal action may be taken.

Record Retention

All records relating to Protected Disclosures, investigations, reports and actions taken shall be maintained by the Company for a period of not less than eight (8) years from closure of the matter or such longer period as may be required under applicable law.

Disclosure Of The Policy

This Policy shall be hosted on the website of the Company.

The Company shall make such disclosures relating to the Vigil Mechanism as may be required under applicable law, including in the Board's Report, Corporate Governance Report and annual filings.

Review, Amendment And Interpretation

The Audit Committee shall periodically review the effectiveness of this Policy and may recommend amendments to the Board.

The Board reserves the right to amend, modify or replace this Policy at any time in accordance with applicable laws and regulatory requirements.

In the event of any conflict between this Policy and applicable law, the provisions of applicable law shall prevail.

Any questions regarding interpretation of this Policy shall be referred to the Audit Committee, whose decision shall be final, subject to applicable law.

Governance, monitoring and records

- Policy owner: Chairperson – Audit Committee / Compliance Officer. The owner shall maintain procedures, registers, evidence and training appropriate to the control risks.
- Functional heads must escalate suspected breaches promptly and cooperate with reviews or investigations.
- Records must be accurate, access-controlled and retained for the longer of the statutory period, an applicable legal hold and the Company's Preservation Policy.
- A person who raises a concern in good faith is protected from retaliation, subject to the Company's whistleblower framework.

Review, approval and controlled disclosure

This Policy shall be reviewed annually and earlier on a material legal, regulatory, operational or organisational change. Amendments require approval by the Board of Directors unless a law permits a delegated, non-substantive update.

After approval, the Company shall place the Policy or the required disclosure/web-link on its website and in corporate reports to the extent mandated by applicable law. Only the approved controlled copy may be published.